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Article

Land Distribution Programmes in Odisha—A Social Audit in Nuapada

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Abstract

The land distribution operations of the Government of Odisha has been a place of Shelter, as well as a productive resource for *Adivasis* and *Dalits*. But in the last three decades, schemes like ceiling surplus for the landless, *bhudan* land distribution and the *basundhar* scheme have failed to yield the desired result because of the lack of actual physical possession by the beneficiary, unavailability of records of rights and poor land quality.

Keywords

Jamabandi, Bheti, Jabardakhal, Sukhbasi, Rakshit khata

Historical Background of Nuapada District, Odisha

In the year 1818, Appa Saheb, the Bhonsala Raja of Nagpur was deposed by the East India Company (EIC). Khariar estate, present Nuapada district of Odisha, which was under the Bhonsalas at that time, too was ceded by the Bhonsala Raja to the EIC by the treaty of 1826 (Orissa District Gazetteer, Kalahandi, 1980, hereafter ODGK). The EIC added this area to Chhotanagpur Division and continued with this arrangement up to 1861. Then for one year, it was under the Cuttack Tributary Mahal. In 1862, along with Sambalpur and Patna, Khariar estate was transferred to the Central Provinces (Tripathy, n.d.).

In the second half of the 19th century, the colonial rulers brought many agrarian changes in this area. The military tenure of the previous order was replaced by regular colonial administrative and revenue arrangements. The colonial rulers realised the dominant position of the local raja, the traditional aristocracy, and of some tribal chiefs; and they recognised them as Zamindar or

Sadar Lambardar and *Lambardar*, respectively. To extract more revenue, the *thekedari* system was introduced in 1868 (Deo, 2009). Previously, the headman under *khudkatti* or first clearer of forest right held the villages. However, in 1869, the system was changed and the *thekedars* or leaseholders were introduced. Those bidding to collect the maximum revenue from a village became the *thekedar*; villages were auctioned.

Moneyed men as usual took advantage of this, especially the horse traders (Muslims from north India), wine venders (Sundhis from Chhattisgarh), the Kultas (expert cultivators from Sambalpur) and the Brahmanas. The *adivasi* headmen with their low level of agricultural technology and having little experience of a monetised economy, complex social setting and state structure could not compete with economically more powerful groups. These moneyed men were at least numerate, had prior experience of state structure and had capacity of choice of environment. Non-*adivasi*s in these roles of dominance gradually replaced the *adivasi* groups (ibid.). Here it may seem strange that only the *adivasi thekedars* defaulted, and all the non-*adivasi* headmen were able to pay the revenue easily, whereas in other regions of India, the non-*adivasi* also defaulted in revenue payment. The explanation can be as follows: First, there were very few non-*adivasi* headmen, and all of them were the Raja's favourites or relatives enjoying *maufi* or rent-free villages. Second, after 1869, with the introduction of *thekedari* system, the new non-*adivasi thekedars* came from economically advanced groups and became the *gaotia*. In some cases, they might have defaulted; yet, for lack of more suitable *thekedars*, the Zamindar might not have replaced them.

Most *adivasi*s were practicing shifting cultivation, but the Zamindars encouraged them to settle down for permanent cultivation in order to increase the revenue of the Zamindari. To this end, he even invited non-*adivasi* peasants and artisans from outside. These incomers were allotted wasteland and areas left fallow by the *adivasi*s in the course of their shifting cultivation. The monetised economy brought land into the market. The inability to pay revenue led to either mortgage or sale of the land. The traders and the Brahmanas purchased lands, the most important source of power.

Between 1870 and 1901, in most land transfers, the *adivasi*s were the losers and the horse traders, liquor vendors, the Kultas and the Brahmanas were the purchasers (ibid.). The land transfers from *adivasi*s to moneylenders and business persons were not confined to Khariar but were widespread in Western Odisha and Chhattisgarh too. On this issue, there was an enquiry and its report in 1888 observed that, between 1863 and 1888, 'one-fifth of the village lands had changed hands, half of the transfers being to the money-lending as opposed to the cultivators classes.' (The Imperial Gezetteers of India, X). In the next 15 years, the process accelerated due to famine. There was an increase in prices of food grains which further added to the miseries of the people. Rice was 70–80 seers per rupee in 1862–63; in 1900, it went down to 6 seers (Dewar, 1906).

Prior to colonial rule, the *adivasi* headmen had paid occasional *bheti* or presents; and it was nominal and voluntary, according to one's power, status and influence: Availability of lands exceeded that of cultivators. An *adivasi* leader or headman wielded considerable power and influence over his followers, and he could create trouble for the kingdom. The communal ownership of land and the widespread shifting cultivation made the imposition of a fixed revenue demand difficult. Therefore, there was no regular system of assessment approved by the ruler. It depended rather on the personal relations between the Raja and the *adivasi* leader or headman.

It is not that the colonial rulers did not realise the vulnerable position of the *adivasi*s. In the revenue settlement of 1891, some tribal *gaotias* who could prove long possession and improvement of villages were given protected status against arbitrary eviction by the Zamindars. Out of the eighteen protected *gaotias* or *thekedars* of villages, seventeen were *adivasi*s (Deo, 1984).

In spite of the protected status given to the tribal *gaotias*, ownership of one-third of the total land passed from the *adivasi*s to moneylenders and businessmen between 1891 and 1910. The unprotected tribal *gaotias* in general, and in some cases even the protected *gaotias* lost their land. To reduce transfers of land in general and of tribal land in particular, the Central Province Land Alienation Act was passed in 1917. Under this Act, land held by a tribal tenant could be transferred only to another tribal person. Despite such protective measures, some of the *adivasi* groups could not retain their land. We have surveyed the land records of fourteen villages where Bhunjias and Paharias were once landholders. The *Jamabandi* (rent roll) records between 1937 and 1947 of these villages of subdivisional office, Nuapada, Odisha, show that in eleven villages the Bhunjias and in three villages the Paharias (Kamars) were the *gaotia–thekedars* and therefore the landholders (Deo, 2009).

The *gaotias*, both protected and unprotected, enjoyed the best land of the village for their service of collecting revenue for the state. Gradually, however except in one Bhunjia village and one Paharia village, the Bhunjias and Paharias lost their land to the non-*adivasi*s. In many cases, the Bhunjias and the Paharias withdrew to the deep forest in the interior.

Roots of Marginalisation Process

In the precolonial period a political structure, an early state, was established in the region, but the non-*adivasi* did not have much of an edge over the *adivasi*s because of the deep forest and inaccessible areas in which the latter lived. Whatever little edge they had, their implications took time to take effect. The non-*adivasi*s had to depend upon the goodwill of the predominant *adivasi*s but, gradually, in the 17th and 18th centuries, the rulers started giving land grants to their own relatives, to brahamanas, to temple and the artisans.

In the colonial period, the process accelerated and reached the interiors. The administrative and political measures of the British Government helped non-tribal plainsman move deeper into *adivasi* hinterland both physically and socially. With *thekedari* system of collecting revenue and rent, this external pressure reached the *adivasi* people in general in a continuous and organised manner. The British found the ruling chief, the *thekedars*, some *adivasi*s–*goatias* and non-*adivasi*–*gaotias* as loyal and faithful allies and the exploitative order which was emerging got strengthened. The moneyed men as usual took advantage of this and a fresh batch of outsiders entered Khariar Zamindari or Nuapada in the last few decades of the 19th century and beginning of the 20th century, that is, Marwaris, Punjabis, Sindhis and Biharis. The 20th century immigration came in a totally different context, one of commercialisation of land forest and agriculture and monetised economy. The *adivasi* peasants with their low level of agricultural technology and having little experience of monetised economy, complete social structure which demanded registration land by name, undivided ownership, etc., they could not fathom. They, in their own village, got reduced to tenants-at-will and bonded servants. The changes which came in Nuapada made the *adivasi* peasants incapable of reproducing. In some places, they fell back on the forest for their livelihood. But the ruling classes, in order to enhance their income, opened the forest to commercial exploitation with active support of colonial rulers, which led to the denudation of some prime sal and teak forest of Nuapada. Forest contractors had the cheap *adivasi* labour in this greed. Gradually minor forest products, an important source of livelihood of the *adivasi* and villagers, went to the hands of the outside traders. Indiscriminate felling of trees and over-exploitation of forest resources led to the breakdown of ecological balance. Earlier the *adivasi*s withdrew to the interiors into deep forest. Now the same avenue was closed due to forest reservation laws, construction of roads, dams, etc.

Present Scenario

In the 20th century, while forest and agricultural land became scarce, the population of Nuapada was ever increasing. This contributed to the unequal distribution of land. Scanty irrigation provision to agriculture made problem more complicated and created vexed problems. Peasant's rotation crops were severely hampered. Under pressure, land alienation continued in hundred of forms. At the juncture a few irrigation dams came up and as a result the land alienation was found much higher in the region where these irrigation facilities came up. The peasants were too poor and too indebted to hold land though government restrictions are there for sale and transfer of land.

Nuapada, comprising 2.47 per cent of Odisha's landmass, occupies nineteenth position amongst thirty districts of Odisha (Directorate of Economics and

Statistics, *District Stastiscal Handbook*, Nuapada, 2005, hereafter DSHBN). With a population of 5,30,690 (Female: 2,66,294 and Male: 2,64,396), it ranks 398th position among the districts of India and twenty-fourth position among the districts of Odisha. During the last decade, 61,042 persons were added to the 1991 population. The percentage increase in population during the decade is 13.04, which is lower than the state average of 15.94; 94.34 per cent of the population live in rural area and depend mostly on agriculture for their livelihood. In comparison to other districts of Odisha, Nuapada suffers from physical constraints and from frequent drought due to erratic rainfall. But there is no dearth of water resources and mineral resources. Only problem is that these crucial sources are not equally available throughout Nuapada. South-west Nuapada is largely characterised by forest cover, hilly terrain, poor soil, the north-east part of the district is primarily plain and less forested dotted with hills and mountain.

Table 1(A and B) on the next page present population characteristics in Nuapada District, block-wise as per 2001 census.

The analysis of population characteristics block-wise can be done from Table 1B. 71.82 per cent of the total workers are depend on agriculture in Nuapada district whereas this dependence is 57.70 per cent in the state of Odisha. The representation of cultivators is also found higher in the district, that is, 49.50 per cent compared to 35.82 per cent in the state, though the proportion of agricultural labourer remains similar around 22 per cent of main workers. The district has higher percentage of total workers designated as marginal workers (46.16 per cent) compared to 32.83 per cent for the state. In case of Boden, Khariar and Komna blocks, the percentage of marginal workers are at a higher size to total workers. Of these marginal workers, 66.78 per cent is female in the district compared to 61.66 per cent in case of the state (Directorate of Economics and Statistics, 2005). Work participation rate is found higher in all the five blocks compared to the state if marginal workers are also included. Substantial portion of the marginal workers being dependent on agriculture as agriculture labourers, there is a sizeable portion of the total workers engaged as agricultural labourers who depend on hiring out of their labour. Nuapada district as whole is monsoon dependent agriculture and unfortunately drought visits this district in alternative years due to erratic rainfall. Therefore, the availability of work in agriculture is limited and almost negligible in drought years.

In Table I we have observed that out of the cultivable holdings, around 73 per cent belong to the category of marginal and small farmers in the district. They operated area to the tune of 12.41 per cent and 27.72 per cent, respectively. The land distribution shown in Table II reveals higher proportion of cultivable holdings operating in medium size groups in the district. It may however be mentioned that in monsoon dependent agriculture in Nuapada, a medium farmer gets reduced to the status of small farmer and a small farmer into the status of marginal farmer and the marginal farmer virtually is equivalent to

Table 1A.

	Boden			Khariar			Komna			Nuapada			Sinapali			District		
No. of HH (ST/SC/OC)	6,625	2,546	7,610	6,130	4,118	10,767	10,203	4,340	9,335	4,910	2,517	8,357	9,336	3734	8937	37204	17255	45006
	M	**F**	**T**	**M**	**F**	**T**	**M**	**F**	**T**	**M**	**F**	**T**	**M**	**F**	**T**	**M**	**F**	**T**
Total Population	35,888	36,168	72,506	46,408	46,610	93,018	57,906	59,176	1,17,082	59,635	60,195	1,19,830	49,309	49,357	98,666	2,64,396	2,66,294	530690
SC	4,681	4,748	4,920	7,224	7,267	14,491	7,996	8,033	16,029	6,744	6,729	13,473	6,534	6,557	13,091	36,061	36,235	72296
ST	14,533	14,741	29,274	12,550	12,987	25,537	25,219	26,078	51,297	23,148	23,848	46,996	14,320	14532	28852	90901	93320	184221
Main Workers	13,803	2,264	16,067	15,848	2,583	18,431	22,722	5,471	28,193	27,446	7,704	35,150	21,920	3,326	25,246	1,08,907	22654	131561
Marginal Worker	6,293	11,547	17,840	9,348	12,266	21,614	9,849	20,030	29,879	5,686	19,105	24,791	5,545	11,244	16,789	37,471	75328	112799
Non-Worker	15,792	22,357	38,149	21,212	31,761	52,973	25,335	33,675	59,010	26,503	33,386	59,889	21,844	34,787	56,631	1,10,686	155966	266652
Per cent cultivators to total Main Worker	NA	NA	NA	NA	NA	NA	NA	NA	NA	NA	NA	NA	NA	NA	NA	NA	NA	49.50

Per cent Agri-culture Labours	NA	NA	NA	NA	NA	NA	NA	NA	NA	NA	NA	NA	NA	NA	NA	NA	NA	22.23
Per cent Female Mem-ber in Mar-ginal Work-ers			64.73			57.03			67.04			77.06			66.97			66.78
Literacy rate Per cent	36.43	54.26	18.82	25.92	59.26	42.53	22.48	54.59	38.28	27.92	59.15	43.36	21.49	57.01	39.49	25.79	58.46	42
Female Per 1,000 male	ST-1014	SC-1014		ST-1032	SC-1006		ST-1034	SC-1005		ST-1030	SC-998		ST-1015	SC-1004		ST-1027	SC-1005	

Source: District Statistical Handbook, 2005, Nuapada

Table 1B.

No. of HH	Khariar NAC			Khariar Road NAC		
	2,874			3,398		
	M	F	T	M	F	T
Total Population	6,850	6,559	13,409	8,400	8,229	16,629
SC	1,370	1,460	2,830	1,512	1,441	2,953
ST	522	502	1,024	609	632	1,241
Main Workers	2956	552	3508	4,212	754	4,966
Marginal Workers	474	384	856	276	752	1,028
Non-workers	3,420	5,623	9,043	3,912	6,723	10,635

Source: Directorate of Economics and Statistics, 2005.

agricultural labourer. If we take the definition of landless, that is, less than one standard acre then 37.26 per cent of Nuapada landholders of Nuapada will be bracketed as landless. Social analysis reveals that 95 per cent Scheduled Caste (SC) category are landless and amongst the Scheduled Tribe (ST) it will be around 50 per cent.

Historical analysis of land ownership in Nuapada district reveals that over a historical period, the *adivasi*s and the lower section of the *Jati* societies have been systematically deprived of the ownership of land. In view of the above historical facts, Government of Odisha in its Odisha Land Reform Act defined a family having less than one standard acres of land as a landless family where one standard acre means,

- having *Aat* or high land below four and half acres class IV (non-irrigated *baheli* or rainfed middle land capable of producing one paddy crop in monsoon season)
- below three acres (class III) land or
- class II land of one and half acres, that is, land receiving assured irrigation and produced only one crop in Kharif season or
- one acre of class I land, that is, one acre of agricultural land irrigated from assured source of irrigation and capable of producing two major crops in an agricultural calendar year.

According to the above definition, around 73 per cent of the families of Nuapada district are below prescribed limit and therefore they are landless. A family is defined as husband and wife along with their dependent children and parents who cook in the same home. As per Orissa Land Settlement Act, 1962 and its

subsequent amendments SC and ST families are given preference for land distribution. Seventy percent of the available land of a village is to be distributed amongst them and balance land to the non-SC and ST families.

Orissa Prevention of Land Encroachment Act (OPLEA) 1972, and OPLEA Rule, 1985 provides that, if a landless person or homesteadless person encroaches a cultivable waste category of land and homestead land under reserved category could be settled in favour of the encroacher for agriculture and homestead, respectively. In such cases the Revenue Inspector shall report the cases of *Jabardakhal* of land to the Tahasildar. At the end of the financial year, the RI should submit a report that no further *Jabardakhal* cases are there in this RI circle. These are recorded with record register and proceedings are drawn. After going through the prescribed procedure, Tahasildar records his findings and on satisfaction he can settle the *Jabardakhal* land without any penalty or fine if the encroacher is landless. Proclamation and letter of intimation are issued in due course in such cases.

Further, the ceiling surplus land has been distributed to the landless and SC, ST families, also pre-80 settlement of encroached forest land are in the process of settlement.

As a result of above Acts, Rules and settlements in Nuapada districts, lands are available for as wasteland, cultivable land, forest land, land available and fit for distribution to the landless. Table 2 (A, B, C and D) gives the Tahasil-wise land status of Nuapada district. The land use classification of the district can also be examined from the table below.

Table 2A. Land Utilization Pattern in 2005

Type of land	District Statistical Handbook 2005
Total Geographical Area	3,852 sq. km
Forest Area	31,807 hectares
Misc. Tree and Gorier	840 hectares
Permanent Pasture	16,365 hectares
Cultivable waste	9,474 hectares
Land put to non agriculture use	19,297 hectares
Berrna and uncultivable land	9,327 hectares
Current fallow	21,176 hectares
Other fallow	7358 hectares
Net area sown	1,29,538 hectares

Net area sown of the district is 53.69 per cent. Further, the district Statistical Handbook records an increase in forest area, that is, 30,097 hectors in 2002–03 to 31,807 hectors in 2003–04.

Source: District Collector Office, Nuapada.

Table 2B. Land Available Tahasil-wise for Distribution and Distributed so far

Name of the Tahasil	Total area of Govt. wasteland in the Tahasil (including areas belonging to local bodies such as Panchayats, etc.) in Hectares	Total cultivable area being put to productive use (such as Agri-culture, Social Forestry, Pasture development, etc.,) in Hectares	Total area avail-able and fit for distribution to the landless (in Acre)	Total area distributed so far (in Acre)	Area yet to be distributed (Col. 4–Col. 5)	Target to be fixed for distribution of wasteland to landless for the year 09–10
1	2	3	4	5	6	7
NUAPADA	102953.00	78101.44	23317.22	13021.16	10296.01	0.00
KHARIAR	20158.78	27244.10	20158.78	6084.37	14074.40	0.00
KOMNA	11181.74	10380.02	11218.44	10841.76	376.68	0.00
BODEN	63212.74	19492.32	6312.74	218.53	6094.21	0.00
SINAPALI	7806.48	5323.81	5323.81	217.40	5106.41	0.00
TOTAL	**205312.74**	**140541.69**	**66330.99**	**30383.22**	**35947.71**	**0.00**

Source: District Collector Office, Nuapada.

Table 2C. Number of Beneficiaries in Respect of Area Already Distributed

Total No. of Individual Beneficiaries in Respect of Area Already Distributed										
	ST		SC		OC		Societies/Institutions, etc.		Total area of Private wasteland available for distri-bution to landless	Total area of Degraded Forest Waste-land out of total wasteland in the Tahasil
Name of the Tahasil	No. of Beneficiary	Area (in Acre)	No. of Beneficiary	Area (in Acre)	No. of Beneficiary	Area (in Acre)	No. of Institutions	Area (in Acre)		
	8	9	10	11	12	13	14	15	16	17
NUAPADA	8453.00	5941.40	4944.00	3267.18	6726.00	3812.62	4.00	49.25	0.00	3602.55
KHARIAR	4085.00	2644.45	3092.00	1591.24	3879.00	1848.58	0.00	0.00	0.00	0.00
KOMNA	1044.00	173.32	539.00	81.94	1206.00	221.71	0.00	0.00	0.00	0.00
BODEN	370.00	135.70	102.00	18.38	359.00	65.45	0.00	0.00	0.00	0.00
SINAPALI	504.00	107.68	327.00	26.62	458.00	85.03	0.00	0.00	0.00	0.00
TOTAL	**14456.00**	**9002.55**	**9004.00**	**4985.36**	**12628.00**	**6033.39**	**4.00**	**49.25**	**0.00**	**3602.55**

Source: District Collector Office, Nuapada.

Table 2D. Average Area in Acre Distributed per Beneficiary

	ST	SC	OC
NUAPADA	0.70287	0.66084	0.56685
KHARIAR	0.64736	0.51463	0.47656
KOMNA	0.16602	0.15202	0.18384
BODEN	0.36676	0.1802	0.18231
SINAPALI	0.21365	0.08141	0.18566
TOTAL	**0.62276**	**0.55368**	**0.47778**

Source: District Collector Office, Nuapada.

Social Audit of Land Distribution

Case study of Ranimunda and Birighat Panchayats of Khariar Block District, Nuapada

Access to land is acutely important for food security, where the incidence of poverty is highly correlated with lack of access to land. According to recent statistics from the Food and Agriculture Organization, the majority of the world's hungry—508 million out of a total of 800 million people—live in Asia, where hunger is virtually synonymous with the small and marginal farmers and landless.

The Government of Odisha has for long realised that access to and control over land resources holds the key to poverty alleviation and land reforms is a prerequisite to development. Therefore, it has been one of the first states to implement land reforms by formulating progressive land laws. However, the proper implementation of laws for distribution of land to the landless and ensuring their physical possession remains a major concern.

The Land Ceiling Act was enacted in 1974 with the intention of bringing economic and social justice amongst the weaker sections of the society. Its objective was to acquire surplus land by the government and redistribute it among landless to improve their economy and living standards and to boost agricultural production in the state. As per ceiling surplus rules, land up to 0.7 standard acres was allotted to the landless persons for agricultural purpose. Besides this, the government has also distributed wastelands and homestead plots to the landless. Recently in 2007, the government has launched a campaign called *Mo Jami Mo Diha* (My Land and My Homestead land), to ensure possession of lands to the landless within a stipulated time.

In order to discuss various dimensions of land distribution and to evaluate the efficacy of the land distribution programmes in Nuapada district of Odisha, Social Audits of Land Distribution schemes were conducted by Odisha Gabesanachakra Odisha, and Council for Social Development, New Delhi. There were four major objectives of this effort:

- To discuss about the status of implementation of land distribution scheme of the government and efforts of the government officials to implement the same.
- To review how the land distribution schemes have achieved its primary objective of increasing access of the landless households to land.
- To understand how land distribution has been helpful in increasing socio-economic status of the landless households in the villages.
- To involve the government officials especially of the revenue department to take action to help people to have access to the lands that they have been allotted.

Study Area

Ranimunda and Birighat Panchayats of Khariar block in Nuapada district had been selected as the focus villages. Ranimunda Panchayat consisting of six villages spreads over an area of 1723 sq. km. Likewise, Birighat has an area of 1243 sq. km with five villages. Eight villages out of the total eleven are Revenue villages where lands have been distributed to landless households by the revenue department. Other three are forest habitations which have been surveyed now under the Forest Right Act. We have concentrated our study to the revenue villages.

The study villages are located in the south of Khariar town. The nearest village Birighat is at a distance of 8 km. The farthest is Kotamal (20 km).

Total number of households in these two Panchayats is 1,969. Total population is 7,974 out of which 47 per cent is tribal. The rest 53 per cent consist of SC and Other Backward Castes (OBC) population (Table 3).

Table 3. Population of the Selected Panchayats

Village name	Total HH	Total P	SC. P	ST. P	OBC
Kusumal	298	1,215	224	508	483
Jharasaram	71	326	88	90	148
Mahuljharan*	19	85	0	85	0
Godadhapadar	115	469	41	296	132
Birighat	333	1,391	218	666	507
Total of Birighat Panchayat	**836**	**3,486**	**571**	**1,645**	**1,270**
Per cent			**16.38**	**47.19**	**36.43**
Ranimunda	435	1,665	221	472	972
Samadpadar*	47	198	0	186	12
Mahulkot	193	783	43	667	72

Table 3. *(Continued)*

Table 3. *(Continued)*

Village name	Total HH	Total P	SC. P	ST. P	OBC
Palama	83	317	24	176	117
Kampaniguma*	41	208	0	201	7
Kotamal	334	1,317	63	404	850
Total of Ranimunda Panchayat	**1,133**	**4,488**	**351**	**2,106**	**2,030**
Per cent			**7.82**	**46.93**	**45.25**
Total of two Panchayats	**1,969**	**7,974**	**922**	**3,751**	**3,300**
Per cent			**11.56**	**47.04**	**41.40**

Source: Census 2001.

Note: * Forest habitations/villages.

More than 81 per cent of the total households in the selected Gram Panchayats is recorded as Below Poverty Line (BPL) (78.83 per cent in Ranimunda and 83.28 per cent in Birighat); 59 per cent of the total BPL households belong to tribal and Dalit groups and the rest are OBC. Almost all the BPL households are landless considering the one standard acre criteria. 72.78 per cent of the landless have holdings of less than one standard acre of land and 27.22 per cent are those who did not have any ownership who are locally known as 'SUKHBASI'.

To address the problem of landlessness, the government in last thirty years has distributed homestead lands and ceiling surplus lands to 428 households of these two Panchayats. Besides this, a number of sixty-nine households have also settled government lands in their names through encroachments. Thus a total of 495 households have been provided land by the government. Landlessness still prevails. About 28 per cent of the total households at present in these Panchayats are still *Sukhbasis*.

A major chunk of the beneficiaries of land distribution programmes are beneficiaries of homesteads lands (336 households). Ceiling surplus lands have been allotted to ninety-two households. Sixty-nine households have been able to gain record of right through settlement of encroachment cases. The details are given in Table 4.

Social audits were conducted in all the villages of the above mentioned two Panchayats followed by two Panchayat level programmes. Information gathered at village level social audit programmes were consolidated and all the land related problems were placed in seven groups considering the basic problems that beneficiaries face in such ceiling surplus and wasteland distribution cases (Table 5).

Table 4. Social Categories of Beneficiaries of Land Distribution and their Number in Each Category

Village	ST Beneficiary			SC Beneficiary			OBC Beneficiary			Total Beneficiary			G. Total
	Home stead	Ceiling	JD	Home stead	Ceiling	JD	Home stead	Ceiling	JD	Home stead	Ceiling	JD	
Ranimunda G.P.													
Ranimunda	19	03	09	10	08	02	09	09	24	**38**	**20**	**35**	**93**
Mahulkot	18	20	00	00	00	00	04	01	03	**22**	**21**	**3**	**46**
Palma	28	04	08	15	02	08	33	02	08	**78**	**08**	**24**	**110**
Kotamal	05	00	00	01	00	00	23	02	00	**29**	**2**	**0**	**31**
Birighat G.P.													
Birighat	28	04	01	14	03	00	36	04	01	**78**	**11**	**2**	**91**
Kusmal	05	08	00	02	09	00	03	08	00	**10**	**25**	**0**	**35**
Goddhuapadar	16	01	00	02	00	00	06	00	00	**24**	**1**	**0**	**25**
Jharsaram	20	00	05	16	02	00	19	02	00	**55**	**4**	**5**	**64**
Total	**141**	**40**	**23**	**60**	**24**	**10**	**133**	**28**	**36**	**336**	**92**	**69**	**495**

Source: Tahasil Office, Khariar.

Table 5. Categories of Beneficiaries and Number of Beneficiaries in Each Category

Category 1	:	Allotted *Patta* but the land is under the possession of other farmers.
Category 2	:	Allotted *Patta*/Portions of the land are under the possession of the beneficiaries and the rest under the encroachment of other households.
Category 3	:	Land is under the possession of the beneficiaries. They are paying revenues but have not been allotted *Patta*.
Category 4	:	Allotted *Patta* but land was not demarcated/shown plus land was shown but the beneficiaries did not take the land into their possession because that was uncultivable/poor land quality (hilly and rocky/graveyard).
Category 5	:	Applied for land but have not yet been allotted.
Category 6	:	Allotted *Patta* and the land are under the possession of the beneficiary.
Category 7	:	Landless. Not yet Applied for land.

Source: Based on the findings of social audit (See page 284).

It was found in the social audits that a large chunk of beneficiary families, who have *patta*s for ceiling surplus land allotted to them do not physically possess them as the land is still under the possession of the previous owners or the encroachers who still reap the benefits from such land. Although about three decades have passed since allotment, efforts to ensure physical possession of the land to the allottees have been limited. Interestingly, even though most do not have physical possession, they have to pay tax as they are owners as per government records. Table 6 reveals the status of land distribution in the mentioned two Panchayats.

More than 50 per cent of the beneficiaries of the land distribution programmes have not taken the lands into their possession although they are continuously paying taxes. This is because, either the lands have not been identified or have been encroached by others. The government has not followed up the process of identification and demarcation after the allotment. The beneficiaries have applied for identification and possession but have not been able to get the possession because of complicacy in the process of identification and non-cooperation from the government officials.

The above data shows that only 41 per cent of the allottees are in clear possession of the allotted lands and out of this group, 75 per cent is Jabar Dakhal (J.D.) cases. They are in possession because they had been cultivating the lands since long and could settle the lands in their names.

This shows that the land distribution operations in last three decades has failed to yield the desired result because of lack of actual physical possession by the beneficiary, unavailability of record of rights and poor land quality making it almost impossible for him/her to cultivate the land and at times even identify it.

Table 6.

Sl.	Name of the Village	Total Beneficiaries	Categories of Beneficiaries and Number of Beneficiaries in Each Category						
	Ranimunda G.P.		1	2	3	4	5	6	Total
1	Ranimunda	**93**	0	6	0	42	0	45	93
2	Mahulkot	**46**	21	0	0	0	15	10	46
3	Palma	**110**	0	1	8	28	5	68	110
4	Kotamal	**31**	0	0	0	18	0	13	31
	Sub total	**280**	**21**	**7**	**8**	**88**	**20**	**136**	**280**
	Per cent		**7.5**	**2.5**	**2.86**	**31.4**	**7.14**	**48.6**	
	Birighat G.P.								
5	Birighat	**91**	42	0	0	46	0	**3**	91
6	Kusmal	**35**	4			18		**13**	35
7	Goddhuapadar	**25**	0	0	0	23	0	**2**	25
8	Jharsaram	**64**	15	0	0	0	0	**49**	64
	Sub total	**215**	**61**	**0**	**0**	**87**	**0**	**67**	**215**
	Per cent		**28.4**	**0**	**0**	**40.5**	**0**	**31.2**	
	G.Total	**495**	**82**	**7**	**8**	**175**	**20**	**203**	**495**
	Per cent		**16.6**	**1.41**	**1.62**	**35.4**	**4.04**	**41**	

Source: Based on the findings of social audit (See page 284).

The day-to-day experience of Nuapada and empirical social audit conducted in Birighat and Ranimunda Panchayats made on 13 January 2009 and 29 January 2009, respectively, demonstrate that on an average, a household of five members with family labour can manage to live a normal rural life with the available quality of land of 10–12 acres in active cultivation position in normal monsoon year. One cannot manage his family if it is below 10 acres under his active cultivation position—for that his family has to supplement income from other sources. But under no circumstances a family can manage if they possess only 5 acres or less than that, because avenue to substantiate his income is not available in Nuapada. More than 70 per cent of the households of Nuapada are bracketed in the latter category. They are the vulnerable section of the society. Majority of them are Dalits or *adivasi*s. Further, due to dominant patriarchal ideology of the society, the women are the worst sufferers. If the status of the households having at least some land is so precarious, one can imagine the condition of the landless of Nuapada and their women folk, children and old.

Social analysis of distribution of operational landholding reveals that 96 per cent of the SC groups are landless families.

Analysis of land distribution pattern block-wise reveals that there is no uniformity in land distribution—neither in overall distribution nor in the distribution of social categories. In Nuapada block, the average land an ST beneficiary has received is 0.7 acres whereas an SC has got 0.6 acres and an OBC (Other Backward Caste) has got 0.5 acres. Even amongst the STs there is a lot of uneven distribution; an ST of Sinapali has got an average of 0.7 whereas an ST beneficiary has got 0.3 acres in Komna, 0.2 acres in Sinapali and 0.1 acres in Khariar block. In case of SCs and OBC also this type of discrepancy is quite glaring. An SC beneficiary of Nuapada has received an average of 0.68 acre whereas in Khariar it is 0.5 acre, in Komna and Boden 0.1 acres and in Sinapali it is 0.08 acre. Amongst OBC in Nuapada it is 0.5 acre whereas in Khariar it is 0.4 and Komna, Boden and Sinapali it is 0.1 acre. The amount of land distributed per household is very small and it is not supported by cash component, neither for homestead nor for agriculture purpose. The use of landlessness as criterion for allocation; apart from revealing a lack understanding of local social relations may not benefit the poorest of the poor. The land distribution data does not reflect allotment of land to women. Our analysis indicates that at least 10 per cent of the household in Nuapada district is women-headed and they are the most vulnerable section of the society.

The land distribution programme of the government has not had an impact due to several reasons as mentioned above but the major reasons are:

a) Distribution of bad quality of land and that too very meagre.
b) No back up from distributor's side to provide legal support to give physical possession; in many cases the assigned lands were not shown to the beneficiaries and no direct financial support was given to improve the received land site.
c) Revenue record does not reflect the ground realities.

d) Beneficiaries do not know about the legal provisions for land for the socio-economically influential persons and middlemen and officials, except the vulnerable sections of the society.

Findings of Social Audits of two Panchayats:

- More than 81 per cent of the total households in the selected Gram Panchayats are recorded as BPL. 59 per cent of the total BPL households belong to tribal and Dalit groups and the rest are OBC.
- 72.78 per cent of the landless have holdings of less than one standard acre of land and 27.22 per cent are those who did not have any ownership who are locally known as 'SUKHBASI'.
- A total of 495 households have been provided land by the government in last thirty years. (Homestead lands—336 households and ceiling surplus lands to ninety-two households and sixty-nine households have settled government lands in their names through encroachments.)
- Landlessness still prevails. About 28 per cent of the total households at present in these Panchayats are still *Sukhbasis*.
- Amongst the beneficiaries of the land distribution operations (Figure 1):

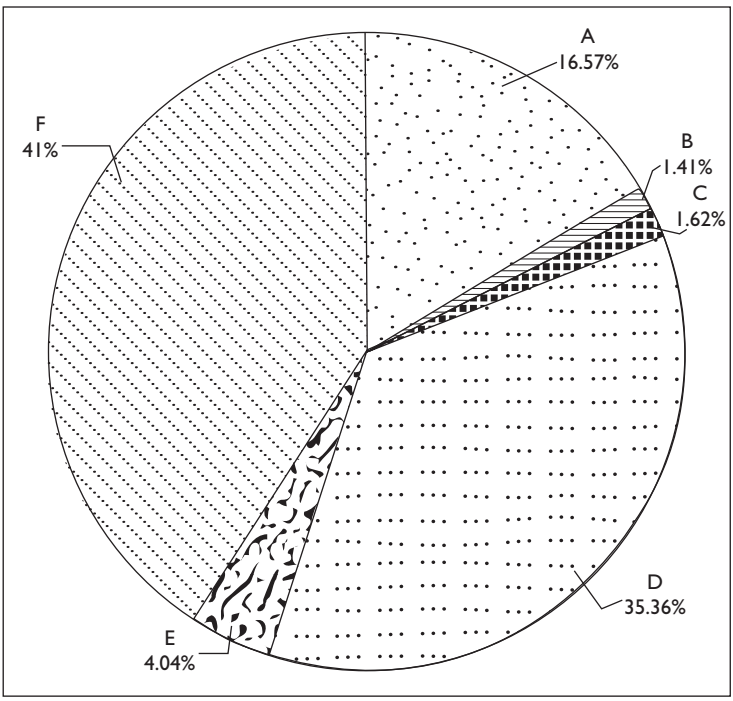

Figure 1. Land Possession Status

Source: Field study and social audit by the study team.

A. 16.57 per cent have *Patta* but the land is under the possession of other farmers.
B. 1.41 per cent are in the possession of part of the land and the rest under the encroachment of other households.
C. 1.62 per cent of the beneficiaries are in possession of the land and paying revenues but have not been allotted *Patta*.
D. 35.36 per cent have been allotted *Patta* but land was not demarcated/shown plus land was shown but the beneficiaries did not take the land into their possession because that was uncultivable/poor land quality (hilly and rocky/graveyard). The government has not followed up the process of identification and demarcation after the allotment. The beneficiaries have applied for identification and possession but have not been able to get the possession because of complicacy in the process of identification and non-cooperation from the government officials.
E. 4.04 per cent have applied for land but have not yet been allotted.
F. 41 per cent have been allotted *Patta* and the lands are under the possession of the beneficiary and out of this group, 75 per cent is Jabar Dakhal (J.D.) cases. They are in possession because they had been cultivating the lands since long and could settle the lands in their names.

Suggestions (Based on information of two Panchayats):

1. Clear demarcation of the allotted lands by the revenue officials in 26.3 per cent of the cases *(130 beneficiaries)*.
2. Considering re-allotment of lands to the beneficiaries:
   i. whose lands have been vested to the government during last settlement: 2.02 per cent *(10 beneficiaries),*
   ii. where the lands allotted are not of good quality (Actually Smasan, Gochar, Patharbani, etc., but not in ROR [record of rights]): 7.07 per cent *(35 beneficiaries),*
   iii. where the people encroaching the lands at present will be landless if vacated (They are cultivating the lands since their ancestors but are not able to avail ROR): 0.40 per cent *(2 beneficiaries)*.
3. Police protection to the beneficiaries for entering into the allotted lands where the encroachers are rich and influential households: 18.22 per cent (*89 beneficiaries*).
4. Allotment of lands to the landless households who have applied for land. 28 per cent of the total households of the G.Ps.

Policy changes needed:

If we consider our study of two Panchayats as representative sample for the whole of the district, we can assume that there are more than 2,000 cases in the district

where the records have been published erroneously reverting the allotted lands back to the government records (*Rakshit Khata*) or recorded in the name of other farmer during the last settlement. Most of the cases belong to poor households who cannot run to the office of the joint commissioner. Considering this magnitude of the cases, it is necessary to think of the following options:

1. Organise monthly or bimonthly camp courts of joint commissioner in district headquarters and decide the cases.
2. Re-enactment of Rule 34 of Odisha Survey and Settlement Rules 1962 dealing with grounds on which correction of map is to be made. This Rule was repealed by an executive instruction from Board of Revenue, Odisha, Cuttack vide their notification number S-59/99-25251/R dated 6/5/1999 in consonance with observation of honourable High Court of Odisha in OJC No-9621 of 1996, that is, a case between Harihar Mahapatra and Commissioner, land records and revenue on the ground that opportunity to make objection and prefer appeal becomes a meaningless exercise in case of mutation by ROR finally published in case where the cause of action has arisen before the publication of the ROR.

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